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**SUPERIOR COURT OF THE STATE OF CALIFORNIA**

**COUNTY OF ALAMEDA**

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| BRENDAN NGEHSI NEWANFORBI,<br>Petitioner,<br>v.<br>CALIFORNIA HIGHWAY PATROL; G. SERRATO, in his official capacity as Captain and Commander of CHP Dublin Area,<br>Respondents. | Case No. 26CV191136<br><br>Hon. Jenna M. Whitman, Dept. 25<br><br>Hearing: January 8, 2027<br>9:00 a.m., Department 25<br>Reservation No. 958052306492<br>Action filed May 29, 2026<br>Trial: Not set |

# MEMORANDUM OF POINTS AND AUTHORITIES

Review draft. Historical hearing particulars are preserved, not freshly confirmed. Signatures, exhibits, service and current case status require completion.

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https://leginfo.legislature.ca.gov/faces/codes_displaySection.xhtml?lawCode=CCP&sectionNum=1091.

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**COURT RECORDS**

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Newanforbi v. Serrato (N.D.Cal. June 29, 2026), No. 4:26-cv-05953-ASK, ECF 5 [body pp. 9]

## Introduction

The surviving First Cause of Action challenges CHP's April 20, 2026 determination that the November 1, 2024 incident involved no qualifying or substantially similar criminal activity. Petitioner does not ask the Court to convert a pleading-stage ruling into a merits finding, require a criminal prosecution of an officer, or revive the dismissed explanation and helpfulness causes of action. He asks the Court to decide whether competent evidence establishes a materially erroneous certification determination under Penal Code section 679.10.

The strongest identified discrepancy is specific. CHP Form 202 says Petitioner chose not to perform the walk-and-turn because it was difficult; the submitted transcript records willingness to attempt it followed by Officer Melano advising against the test because of the uneven shoulder. (CHP Form 202, AGO 000031–000032; Pet., Ex. 5, printed p. 9, approximately 01:10:14–01:10:30.) The discrepancy requires comparison with the authenticated recording. Its existence alone does not resolve the other impairment observations, the lawful-authority question, or its materiality to the certification decision.

Petitioner principally seeks vacatur and lawful reconsideration if a material error is established. Direct certification remains conditional on established statutory predicates, an adequately noticed and available remedy, and no reasonable lawful alternative. If essential incident facts require credibility determinations, Petitioner requests an appropriate factual-resolution procedure before merits judgment rather than a judgment that assumes his allegations true.

**The surviving claim and the actual denial**

The August 29 order overruled the demurrer to Count One because findings crediting Petitioner's allegations concerning absence of odor and impairment and false reporting could support lack of probable cause and an abusive certification refusal. The Court did not make those findings; it also identified evidence potentially supporting probable cause. (Order Sustaining Demurrer in Part, Aug. 29, 2026, pp. 3–4.) Counts Two and Three were dismissed without leave; Count Four received leave to amend, and Petitioner stipulated to dismiss Paul and Dutra. (Id., pp. 4–5.) This motion seeks relief on Count One, not a determination that an amended declaratory claim is pending.

The signed April 20 letter states that a thorough review found no qualifying or substantially similar criminal activity. It does not deny certification for noncooperation. (Pet., Ex. 1.) Respondents' October 12 Answer admits receipt of the April 9 form and supporting materials and issuance of the April 20 denial. (Answer, ¶¶ 2–3.) Those admissions establish receipt and the decision, not acceptance of Petitioner's factual account.

Petitioner does not seek vacatur merely because the letter lacks more detail, or because later discovery has not disclosed every review step. The necessary showing is a legal or factual error that actually undermines the no-qualifying-activity determination.

**Governing duty, burden and scope of review**

Section 679.10 expressly lists unlawful criminal restraint and false imprisonment. Its subdivision (g)(1) directs certification when qualifying victimhood and helpfulness are established; subdivision (h) supplies a rebuttable helpfulness presumption on the stated conditions, not a substitute for victimhood. No current investigation, charge, prosecution or conviction is required. (Pen. Code, § 679.10, subds. (c)(18)–(19), (g)(1), (h), (k)(1). [1])

Traditional mandate may compel a legally required act and correct an abuse of discretion, but it does not ordinarily dictate how lawful discretion must be exercised. (Code Civ. Proc., § 1085 [2]; Common Cause v. Board of Supervisors (1989) 49 Cal.3d 432, 442 [3].) Where discretion remains, Petitioner must establish arbitrary action, action beyond reason, or disregard of applicable legal standards; a particular outcome may be compelled when only one choice can reasonably remain. (California Correctional Supervisors Organization, Inc. v. Department of Corrections (2002) 96 Cal.App.4th 824, 827 [4].)

As the person whose certification request was denied, Petitioner asserts a direct beneficial interest in a lawful determination; the verified petition alleges no plain, speedy and adequate ordinary remedy. (Pet., ¶ 7.) This motion concerns that certification decision, not an award of damages or a court adjudication of immigration status. (Code Civ. Proc., § 1086 [5].)

Petitioner must prove facts essential to his requested relief; absent a different applicable

1. https://leginfo.legislature.ca.gov/faces/codes_displaySection.xhtml?lawCode=PEN&sectionNum=679.10.
2. https://leginfo.legislature.ca.gov/faces/codes_displaySection.xhtml?lawCode=CCP&sectionNum=1085.
3. https://law.justia.com/cases/california/supreme-court/3d/49/432.html
4. https://law.justia.com/cases/california/court-of-appeal/4th/96/824.html
5. https://leginfo.legislature.ca.gov/faces/codes_displaySection.xhtml?lawCode=CCP&sectionNum=1086.

standard, the ordinary civil burden is preponderance of the evidence. This is not an officer's criminal prosecution requiring proof beyond a reasonable doubt. (Evid. Code, §§ 115 [6], 500 [7].) Nor does the existence of a factual dispute itself establish an abuse of discretion.

This is a challenge to an individual certification refusal, not a request to import wholesale the hearing requirements of a different administrative scheme. Saleeby supports review of discretion but does not create an additional section 679.10 explanation claim after this Court's ruling. (Saleeby v. State Bar (1985) 39 Cal.3d 547, 560–563 [8]; Aug. 29 Order, p. 4.)

**Qualifying restraint requires absence of lawful authority**

False imprisonment is the unlawful violation of another's personal liberty; the misdemeanor theory requires intentional restraint without consent or lawful justification, not necessarily the violence or menace that would elevate the offense. (Pen. Code, § 236 [9]; CALCRIM No. 1242 [10].) The admitted handcuffing and transport support intentional custody, but not its unlawfulness. (Answer, ¶ 39.) The disputed lawful-authority question remains central.

The encounter must be assessed in stages, without assuming that every initial contact required arrest-level probable cause. The submitted transcript places door opening at approximately 00:56:43 and the later parole discussion around 01:11:42. (Pet., Ex. 5.) An otherwise unlawful search cannot be justified by a parole condition unknown to the officers when

6. https://leginfo.legislature.ca.gov/faces/codes_displaySection.xhtml?lawCode=EVID&sectionNum=115.
7. https://leginfo.legislature.ca.gov/faces/codes_displaySection.xhtml?lawCode=EVID&sectionNum=500.
8. https://law.justia.com/cases/california/supreme-court/3d/39/547.html
9. https://leginfo.legislature.ca.gov/faces/codes_displaySection.xhtml?lawCode=PEN&sectionNum=236.
10. https://www.justia.com/criminal/docs/calcrim/1200/1242/

they searched. (People v. Sanders (2003) 31 Cal.4th 318, 332–335 [11].) That principle does not establish that the initial contact or search was unlawful, or that a search violation by itself constitutes qualifying criminal restraint; actual restraint and its lawful basis at each material stage still require findings.

Officers did not observe the car moving, and the Answer admits that fact; it denies that the shoulder parking was lawful. (Answer, ¶ 34.) No observed driving is not a complete answer to the arrest question. Mercer addressed the statutes then in force; Troppman explains the Legislature's later expansion of warrantless DUI arrest authority, including evidence dissipating through metabolism. (Mercer v. Department of Motor Vehicles (1991) 53 Cal.3d 753, 768–769 [12]; Troppman v. Valverde (2007) 40 Cal.4th 1121, 1137, fn. 11 [13].)

Section 40300.5 requires reasonable cause to believe the person had been driving under the influence plus an enumerated circumstance. Its evidence-destruction provision is not confined to deliberate concealment; Schofield applies it to metabolic dissipation. (Veh. Code, § 40300.5 [14]; People v. Schofield (2001) 90 Cal.App.4th 968, 973–975 [15], disapproved on another point in People v. Thompson (2006) 38 Cal.4th 811, 829, fn. 3 [16].) Petitioner therefore does not contend that stationary parking, lack of flight, or absence of deliberate evidence destruction defeats every statutory arrest ground.

The Court should instead assess whether reliable facts known at the arrest supported DUI and any other asserted lawful custody ground. The report invokes section 40300.5 and cites

11. https://www.courtlistener.com/opinion/2545822/people-v-sanders/
12. https://law.justia.com/cases/california/supreme-court/3d/53/753.html
13. https://www.courtlistener.com/opinion/2586143/troppman-v-valverde/
14. https://leginfo.legislature.ca.gov/faces/codes_displaySection.xhtml?lawCode=VEH&sectionNum=40300.5.
15. https://www.courtlistener.com/opinion/2256187/people-v-schofield/
16. https://www.courtlistener.com/opinion/2639507/people-v-thompson/

impairment observations, Petitioner's account of earlier driving, his seat position, field-test information and no drinking after stopping. (AGO 000032–000033.) Those matters must be evaluated, not erased by correcting a single test entry.

The Court's cited Espinoza decision is adverse as well as instructive: coherent speech did not negate the other indicators there, and objective facts, not the officer's asserted subjective reason alone, determined probable cause. (Espinoza v. Shiomoto (2017) 10 Cal.App.5th 85, 101–103 [17].) Public intoxication likewise requires its own statutory conditions, including the relevant inability-to-care or public-way obstruction condition; it should neither be assumed from alcohol consumption nor ignored if actually supported by facts known at the time. (Pen. Code, § 647, subd. (f) [18]; People v. Wolterman (1992) 11 Cal.App.4th Supp. 15, 18–21 [19].)

**Test the discrepancy and the remaining evidence together**

The report states: “Walk and Turn: Newanforbi chose not to perform this test and related it was difficult.” (AGO 000031.) The submitted transcript instead records Petitioner saying, “I mean I think we can do that,” followed by Melano's advice against the test because of uneven ground. (Pet., Ex. 5, printed p. 9, approximately 01:10:23–01:10:30.) This concerns walk-and-turn, not the preceding one-leg-stand discussion.

If the authenticated recording confirms that exchange, the Court should determine whether attributing nonperformance to Petitioner was false, whether nonperformance actually supported the report's “poor performance” assessment, and whether correcting it materially changes the

17. https://www.courtlistener.com/opinion/4378115/espinoza-v-shiomoto/
18. https://leginfo.legislature.ca.gov/faces/codes_displaySection.xhtml?lawCode=PEN&sectionNum=647.
19. https://law.justia.com/cases/california/court-of-appeal/4th/11/supp15.html

totality. (AGO 000031–000032.) It would not alone establish that every field-test observation was fabricated.

The report separately describes HGN findings, a 43-second estimate in the Romberg test, eyelid flutter, strong alcohol odor, red/watery eyes and slurred speech. (AGO 000030–000032.) Petitioner disputes impairment, but an absence of audible criticism does not itself disprove odor or technical HGN observations. The admitted urine contents resolve the particular cup, not the separate empty Mike's Hard Lemonade can or every claimed source of odor. (Answer, ¶¶ 36–37, 44, 47.)

The transcript places the advised voluntary PAS refusal shortly before handcuffing and the chemical-test discussion later. (Pet., Ex. 5, printed pp. 10–12; approximately 01:10:54–01:11:33 and 01:15:54 onward.) The applicable PAS provision requires an advisement of its purpose and the right to refuse; Jackson rejects using an exercise of that voluntary statutory right as trial consciousness-of-guilt evidence. (Veh. Code, § 23612, subds. (h)–(i) [20]; People v. Jackson (2010) 189 Cal.App.4th 1461, 1466–1469 [21].) Petitioner does not enlarge that holding into an adjudication that this arrest lacked probable cause; nor does timing alone eliminate other known facts. A later chemical-test refusal cannot supply an observation not yet known at the initial arrest.

The laboratory report is not negative: it records ethanol at 0.073 ± 0.004 grams % from the later blood sample. (AGO 000034; Answer, ¶ 40 [draw at 2:38 a.m.].) Petitioner does not extrapolate an earlier concentration without foundation or equate a below-0.08 result with absence of impairment. The subsequent warrant and test do not resolve what facts were reliably

20. https://leginfo.legislature.ca.gov/faces/codes_displaySection.xhtml?lawCode=VEH&sectionNum=23612.
21. https://law.justia.com/cases/california/court-of-appeal/2010/a128782/

known when handcuffs were applied; likewise, release, no filed charges and the detention certificate do not independently adjudicate probable cause. (AGO 000033–000034; Answer, ¶¶ 41–42; Pet., Ex. 7.)

**Link established facts to the certification determination**

The April submission included a specific qualifying-crime account and transcript; receipt is admitted. (Answer, ¶ 2; Pet., Exs. 2–5.) If the Court finds that the supported account establishes qualifying unlawful restraint, it must then determine whether the no-qualifying-activity conclusion can lawfully stand under section 679.10 and this Court's Count One framework. A disagreement with a police report is not enough unless the underlying findings and material certification error are established.

The denial says a thorough review occurred. Discovery Nos. 6–8 do not identify every April review step and include production commitments; that incompleteness is not an admission that no review occurred. (CHP Responses to Requests for Production, Set One, Nos. 6–8; merged production, PDF pp. 29–31.) Later-dated internal review records do not, by their dates alone, establish what Serrato did or did not review before April 20. (Privilege Log, entries 9–14.)

Nor does the absence of requests for assistance establish qualifying victimhood. If qualifying victimhood is found, helpfulness must then be addressed on its actual statutory terms, including the presumption and any supported rebuttal. (Answer, ¶ 57; Pen. Code, § 679.10, subds. (g)(1), (h), (k)(1), (k)(3)(H) [1].) Petitioner does not use the PAS/chemical-test dispute in the underlying DUI investigation as an automatic determination of cooperation concerning the alleged officer misconduct.

1. https://leginfo.legislature.ca.gov/faces/codes_displaySection.xhtml?lawCode=PEN&sectionNum=679.10.

The related federal order supplies only limited persuasive support for plausibility. "[A]ccepting Mr. Newanforbi's alleged facts as true," it found plausible inferences of false imprisonment based on fabricated evidence and retaliatory certification denial at section 1915 screening. (Newanforbi v. Serrato (N.D.Cal. June 29, 2026, No. 4:26-cv-05953-ASK) ECF No. 5, p. 4, lines 17–25; p. 5, lines 1–6.) Petitioner does not assert binding or issue-preclusive effect, factual findings, entitlement to certification or a new retaliation claim. Its general discretion language does not displace California's conditional statutory duty; Count One depends on this Court's own evidentiary findings.

**Evidence, factual procedure and relief**

Petitioner requests consideration of properly authenticated incident evidence for this informal, individual certification decision. Western States preserves admission of extra-record evidence in traditional mandate challenging ministerial or informal action when facts are disputed; it does not make every submitted item admissible or convert the proceeding into an unrestricted damages trial. (Western States Petroleum Assn. v. Superior Court (1995) 9 Cal.4th 559, 575–576 [22].) The Court should identify which evidence it receives, for what purpose, and whether credibility or foundation disputes require testimony.

Section 1094 permits noticed-motion determination where its no-triable-issue or administrative-record condition is satisfied. If the Court instead needs to resolve an essential factual dispute, Petitioner requests a defined factual-resolution procedure before merits judgment; section 1090 makes a jury reference discretionary, not automatic, and section 1091 permits

22. https://law.justia.com/cases/california/supreme-court/4th/9/559.html

counterproof to the return. (Code Civ. Proc., §§ 1090 [23], 1091 [24], 1094 [25].) No final merits disposition should rest on treating the demurrer order, the Answer's denials, or an untested transcript as adjudicated incident facts.

The essential questions are whether the recording confirms the walk-and-turn exchange; which remaining impairment observations and earlier-driving facts are reliable; what lawful custody authority follows from the totality; and whether the resulting qualifying-activity findings establish a material error in the certification denial. If those questions prevent paper disposition, Petitioner requests directions defining the factual issues, evidence, witness procedure and schedule rather than an assumption that additional discovery proves the claim.

If a material abuse or legal error is found but the record leaves a lawful eligibility determination for CHP, the appropriate requested relief is to set aside the April 20 denial and require reconsideration consistent with the Court's actual findings and section 679.10. A proposed compliance and return period is subject to the Court's order, not an assertion of an automatic post-remand statutory deadline. If all predicates are established and only certification can lawfully remain, Petitioner preserves the narrower conditional request for execution and delivery of Supplement B, subject to the operative pleading and adequate notice. (California Correctional Supervisors Organization, supra, 96 Cal.App.4th at p. 827.)

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23. https://leginfo.legislature.ca.gov/faces/codes_displaySection.xhtml?lawCode=CCP&sectionNum=1090.
24. https://leginfo.legislature.ca.gov/faces/codes_displaySection.xhtml?lawCode=CCP&sectionNum=1091.
25. https://leginfo.legislature.ca.gov/faces/codes_displaySection.xhtml?lawCode=CCP&sectionNum=1094.

**Conclusion**

Petitioner requests judgment on Count One and a writ setting aside the April 20 denial only upon findings establishing a material legal or factual error, with lawful reconsideration as the principal remedy. Direct certification is requested only if the Court finds every statutory predicate established, the relief properly before it, and no reasonable lawful alternative. If essential factual disputes prevent that determination, Petitioner requests an appropriately defined factual proceeding before merits judgment. No damages, relief against the dismissed respondents, adjudication of immigration status, or relief on the dismissed causes of action is requested.

DATED: _____

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BRENDAN NGEHSI NEWANFORBI

Petitioner, in propria persona